

resolution in Sir Moyle Finch's case was, that "a disseisor was subject to no trust, nor any *subpœna* was maintainable against him, not only because he was not in the *post*, but because the right of inheritance or freehold was determinable at the common law, and not in Chancery, neither had the *cestui que trust* (while he had his being) any remedy in that case" (e). And we may add the authority of Lord St. Leonards, who, in his edition of Gilbert on Uses, observes, "At this day every one is bound by a trust who obtains the estate without a valuable consideration, or even for a valuable consideration if with notice, unless perhaps the lord by escheat. But persons claiming the legal estate by an actual disseisin, without collusion with the trustee, will not be bound by the trust. Therefore, if I oust A., who is a trustee for B., and a claim is not made in due time, A. will be barred, and his *cestui que trust* with him, although I had no notice of the trust" (f) (1). And the same thing may be inferred from the terms of the section of the late Limitation Act relating to express trusts (g).

(e) Sir Moyle Finch's case, 4 Inst. 85.

(f) Gilbert on Uses, Sugd. ed. 249.

(g) 3 & 4 W. 4. c. 27, s. 25.

(1) And an outstanding term in a trustee would have attended the inheritance gained by the disseisin. *Reynolds v. Jones*, 2 Sim. & St. 206; and see *Turner v. Buck*, 22 Vin. Ab. 21; *Doe v. Price*, 16 M. & W. 603.